CITATION TO DISCOVER ASSETS TO DEBTOR'S EMPLOYER

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____

County Where the Case Was Filed

Enter the case information as it appears on your other court documents.

PLAINTIFF: _____

Who started the case. *First, Middle, and Last Name, or Business Name*

DEFENDANT: _____

Who the case was filed against. *First, Middle, and Last Name*

RESPONDENT: _____

Employer. *Employer's Business Name*

_____

Employer's Street Address

_____

City *State* *Zip Code*

_____

Case Number

1. **This citation and notice are being sent to you and the debtor because the creditor believes the debtor listed below is employed by you or works for you under some other contractual relationship:**

   Enter the name and address of the debtor.

   _____

   Debtor's Name

   _____

   Street, Apt. # *City* *State* *Zip Code*

2. **Court Date Information**

   Information about getting a court date and how to attend is available from the Circuit Clerk. You can find their contact information at ilcourts.info/clerks.

   A. You must fill out the attached *Answer to Citation Proceeding* form and file it

   - or -

   Attend court on:

   _____ at _____ ☐ a.m. ☐ p.m. in _____.

   Month, Day, Year *Time* *Courtroom Number*

   Court dates may be scheduled in-person, remotely, or a combination of in-person and remotely. Find out how your court date will be scheduled and provide that information here. Add the Clerk's phone number and website.

   B. Attend court any of the ways checked:

   ☐ **In person** at: _____

   Courtroom Address *Courtroom Number*

☐ **Remotely** (video or telephone option)

By video conference at: _____
Video Conference Website

Log-in information: _____
Video Conference Log-in Information, Meeting ID, Password, etc.

By telephone at: _____
Call-in Number for Telephone Remote Appearance

To find out more about remote court options:

Phone: _____ or Website: _____
Circuit Clerk's Phone Number *Website URL*

Notice to Debtor

- IF YOU FAIL TO APPEAR IN COURT AT THE DATE AND TIME PROVIDED, YOU MAY LOSE THE RIGHT TO PROTECT MONEY IN A BANK, SAVINGS BANK, OR CREDIT UNION ACCOUNT AND OTHER ASSETS AND COULD BE SUBJECT TO ARREST AND IMPRISONMENT.
- If you go to court on the court date listed in section 2 you may be able to claim certain protections (exemptions) at that court date. See *How to File an Emergency Motion to Claim Exemption* for information on how to file this *Motion*.
- If you need to go to court earlier than the court date listed in section 2, you can file an *Emergency Motion to Claim Exemption*.
- You have a right to challenge the employer's calculations of withholding that the employer includes in their *Answer* to this *Citation*.
- If you do not attend court and you work for this employer, the court may garnish your paycheck.

Notice to Employer

- You are prohibited from making or allowing any transfer or other disposition of, or interfering with, any property not exempt from enforcement of a judgment, a deduction order or garnishment, property belonging to the judgment debtor or to which they may be entitled or which may thereafter be acquired by or become due to them, and from paying over or otherwise disposing of any monies not so exempt, which are due to the judgment debtor. This prohibition shall remain in effect until further order of court or termination of the proceeding. You are not required to withhold the payment of any monies beyond double the amount of the total sum due to the judgment creditor.
- **Warning**: If you fail to appear in court as directed in this notice, you may be arrested and brought before the court to answer to a charge of contempt of court, which may be punishable by imprisonment in the county jail.
- If you do not answer or attend the court date listed in section 2, the judge may do one of two things:
  - Enter a conditional judgment; OR
  - Issue a rule to show cause.
- If the court enters a conditional judgment, you will have 30 days to answer or appear. If you fail to do so, then the court may enter a final judgment against you.
- If there is a rule to show cause court date, you will have to explain why you did not attend court on the court date and why you should not be found in contempt of court. If you do not attend the rule to show cause on the set court date, the judge may find you in contempt, and you might be arrested and jailed.